

HOUSE No. 3726**The Commonwealth of Massachusetts**

PRESENTED BY:

Jack Patrick Lewis*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act aligning the Commonwealth's transportation plans with its climate goals.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jack Patrick Lewis</i>	<i>7th Middlesex</i>	<i>1/16/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>2/3/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/3/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>3/12/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>3/12/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>3/12/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>3/24/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/2/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>5/6/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>5/13/2025</i>
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>5/14/2025</i>
<i>Michelle L. Ciccolo</i>	<i>15th Middlesex</i>	<i>5/27/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>7/15/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>7/15/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>7/15/2025</i>
<i>Amy Mah Sangiolo</i>	<i>11th Middlesex</i>	<i>7/15/2025</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>7/29/2025</i>

HOUSE No. 3726

By Representative Lewis of Framingham, a petition (accompanied by bill, House, No. 3726) of Jack Patrick Lewis and others that the Massachusetts Department of Transportation be authorized to establish a process to conduct emissions impact and vehicle miles traveled impact assessments for projects and mitigation measures. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act aligning the Commonwealth's transportation plans with its climate goals.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 6C of the General Laws is hereby amended by inserting the
2 following two sections:-

3 Section 80. (a) As used in this subsection, the following words shall have the following
4 meanings, unless the context clearly requires otherwise:

5 “Emission”, the same meaning given in section 1 of chapter 21N.

6 “Emissions impact”, an increase or decrease of emissions from vehicles traveling on
7 roadways in the commonwealth.

8 “Metropolitan planning organization”, an organization designated as being responsible,
9 together with the department, for conducting the continuing, cooperative, and comprehensive
10 planning process under 23 U.S.C. 134 and 49 U.S.C. §§ 5301 through 5340; provided, that for
11 the purposes of this section, regional planning agencies that have not been formally designated as

metropolitan planning organizations under 23 U.S.C. 134 and 49 U.S.C. §§ 5301 through 5340 shall be considered metropolitan planning organizations.

“Mitigation measure”, a project, program, or operations modification in one or more of the following areas: (1) transit expansion, including but not limited to regular route bus, arterial bus rapid transit, highway bus rapid transit, rail transit, and intercity passenger rail; (2) transit service improvements, including but not limited to increased service level, transit fare reduction, and transit priority treatments; (3) active transportation infrastructure; (4) micromobility infrastructure and service, including but not limited to shared vehicle services; (5) transportation demand management, including but not limited to vanpool and shared vehicle programs; (6) parking management, including but not limited to parking requirements reduction or elimination and parking cost adjustments; (7) land use, including but not limited to residential and other density increases, mixed-use development, and transit-oriented development; (8) infrastructure improvements related to traffic operations, including but not limited to roundabouts and reduced conflict intersections; and (9) natural systems, including but not limited to wetland restoration, reforestation, and urban green space.

“Regional planning agency”, one of the 13 commissions, councils, or councils of government authorized to be formed under chapter 40B.

(b) No metropolitan planning organization shall approve a Regional Transportation Plan or Transportation Improvement Program developed pursuant to 23 CFR Part 450, and the department shall not approve a Statewide Transportation Improvement Program, unless the plan or program, including any mitigation measures interlinked to individual projects within the plan or program, provides a reasonable pathway to compliance with the greenhouse gas emissions

sublimits for the transportation set pursuant to section 3A of chapter 21N and to the statewide vehicles miles traveled reduction goals established by the secretary pursuant to section 81 of this chapter.

(c) The department shall establish a process to conduct emissions impact and vehicle miles traveled impact assessments for projects and mitigation measures. Such an assessment must provide information sufficient to determine whether a plan or program complies with subsection (b) and shall include estimates of: (i) emissions over a period of 20 years; and (ii) the net change in vehicle miles traveled. The department publish information regarding emissions impact and vehicle miles traveled impact assessments on the department's website. Such information shall include: (i) identification of projects; and (ii) for each project, a summary that includes an overview of the emissions impact and vehicle miles traveled impact assessment, including the emissions impact and vehicles miles traveled impact of the project and of any interlinked mitigation measures, and the project's disposition.

(d) A mitigation measure may be considered interlinked to a project if: (i) there is a specified project, program, or modification; (ii) the necessary funding sources are identified and sufficient amounts are committed; (iii) the mitigation measure is localized as provided subsection (e); and (iv) procedures are established to ensure that the mitigation measure remains in substantially the same form or a revised form that continues to provide sufficient emissions and vehicle miles traveled reductions.

(e) A mitigation measure must be localized in the following priority order: (i) within or associated with at least one of the communities impacted by the project; (ii) if there is not a reasonably feasible location under clause (i), in areas of persistent poverty, areas underserved by

public transportation, or historically disadvantaged communities, as measured and defined in federal law, guidance, and notices of funding opportunity; (iii) if there is not a reasonably feasible location under clauses (i) and (ii), in the region of the project; or (iv) if there is not a reasonably feasible location under clauses (i) to (iii), on a statewide basis. A metropolitan planning organization and the department must include an explanation regarding the feasibility and rationale for each mitigation measure localized under clauses (ii) to (iv).

(f) The department may promulgate rules or regulations for the implementation of this section.

Section 81. (a) To relieve traffic congestion, improve air quality, and promote compliance with the greenhouse gas emissions limits established pursuant to chapter 21N, the secretary shall, in consultation with the secretary of economic development, the secretary of energy and environmental affairs, and the secretary of housing and livable communities, set a statewide vehicle miles traveled reduction goal for the year 2030 and for every fifth year thereafter. The vehicle miles traveled reduction goals shall be incorporated into: (i) the greenhouse gas emissions sublimits for the transportation sector set pursuant to subsection (b) of section 3A of chapter 21N; and (ii) the roadmap plans published pursuant to subsection (b) of section 3 of said chapter 21N.

(b) The secretary shall conduct public hearings on the proposed 2030, 2035, 2040, 2045 and 2050 statewide vehicle miles traveled reduction goals. The secretary shall conduct a portion of these hearings in regions that have limited access to public transit and in regions that have the most significant exposure to air pollutants.

SECTION 2. Section 3A of chapter 21N of the General Laws, as so appearing, is hereby amended by inserting the following subsection:-

(c) In setting greenhouse gas emissions sublimits for the transportation sector pursuant to subsection (b) of this section and in each roadmap plan published pursuant to subsection (b) of section 3, the secretary shall incorporate the vehicle miles traveled reduction goal set by the secretary of transportation pursuant to section 81 of chapter 6C for the corresponding year.

SECTION 3. (a) There shall be within the executive office of transportation, but not subject to the control of the office, an intergovernmental coordinating council to implement a vehicle miles traveled reduction plan. The council shall consist of the following 15 members: the secretary of transportation or designee, who shall designate the chair of the council; the secretary of energy and environmental affairs or designee; the commissioner of environmental protection or designee; the commissioner of parks and recreation or designee; the general manager of the Massachusetts Bay Transportation Authority or designee; the secretary of economic development or designee; the secretary of administration and finance or designee; the secretary of housing and livable communities or designee; the executive director of the Massachusetts Port Authority or designee; the executive director of the Massachusetts clean energy technology center or designee; the commissioner of public utilities or designee; the executive director of a regional planning agency or designee, who shall be appointed by the governor; the executive director of a regional transit authority or designee, who shall be appointed by the governor; and the chairs of the joint committee on transportation or their designees, who shall serve as non-voting members with respect to any spending matter.

The council shall assess and report on strategies and plans necessary to reduce statewide vehicles miles traveled through the establishment of an equitable, interconnected, accessible and reliable network of non-personal vehicle transportation options and through land use policies that reduce the need for personal vehicles. The plan shall facilitate: (i) compliance with the greenhouse gas emissions limits and sublimits set pursuant to chapter 21N of the General Laws, with emphasis on compliance with the emissions limits and sublimits set for 2030; (ii) attainment of the numerical benchmarks for vehicle miles traveled set pursuant to section 81 of chapter 6C; (iii) the development of compact, walkable neighborhoods; and (iv) advancement of access to, and affordability of, non-personal vehicle transportation options.

The assessment shall include, but not be limited to: (i) the present condition of, and future needs for, non-personal vehicle transportation infrastructure and services, including, but not limited to, bicycle paths and lanes; bicycle sharing stations; pedestrian paths; bus, ferry, subway, and train services; transportation demand management programs; and microtransit programs ; (ii) the present status of, and future needs for, land use policies that reduce the need for personal vehicles; (iii) suggestions for optimal locations for new, expanded or improved non-personal vehicle transportation options in urban, suburban and rural areas including, but not limited to, low-income and moderate-income communities; (iv) discussion of programs and policies that may incentivize residents to adopt non-personal vehicle transportation options; (v) discussion of present and projected future costs and methods of financing those costs; (viii) recommendations to assist local governmental and private sector officials in expanding access to non-personal vehicle transportation options and in planning and developing compact, walkable neighborhoods; and (ix) identification and discussion of current policies and recommendations for policies, laws and regulatory actions that may facilitate reductions in vehicle miles traveled.

121 (b) The council shall regularly seek data and input related to transportation planning,
122 personal vehicle traffic patterns, non-personal vehicle transportation options, and development
123 and land use patterns, from stakeholders, which stakeholders shall include, but not be limited to,
124 state and local transportation agencies; companies involved in products, services, technologies
125 and data collection related to transportation and land use; developers, groups representing public
126 transportation, pedestrian, bicycle, land use, environmental, energy and climate perspectives; and
127 groups representing public transit users including, but not limited to, low-income public transit
128 users.

129 (c) The executive office of transportation shall provide administrative support to the
130 council. In conducting and updating the assessment under this section, the council shall hold at
131 least 3 public hearings in geographically diverse areas of the commonwealth.

132 (d) The council shall issue an initial assessment to the senate and house committees on
133 ways and means and the joint committee on transportation not later than 12 months after the
134 effective date of this act and shall reconsider and revise its assessment at least once every 2
135 years. The council shall make its assessments publicly available on the website of each
136 secretariat with a member serving on the council.